STATE OF WASHINGTON
OFFICE OF GOVERNOR JAY INSLEE

PROCLAMATION BY THE GOVERNOR
AMENDING PROCLAMATIONS 20-05 and 20-25, et seq.

20-25.19

"WASHINGTON READY"

WHEREAS, on February 29, 2020, I issued Proclamation 20-05, proclaiming a State of Emergency for all counties throughout the state of Washington as a result of the coronavirus disease 2019 (COVID-19) outbreak in the United States and confirmed person-to-person spread of COVID-19 in Washington State; and

WHEREAS, as a result of the continued worldwide spread of COVID-19, its significant progression in Washington State, and the high risk it poses to our most vulnerable populations and our health care system, I have subsequently issued several amendatory proclamations, exercising my emergency powers under RCW 43.06.220 by prohibiting certain activities and waiving and suspending specified laws and regulations, including issuance of Proclamation 20-25, et seq., which limits Washingtonians' ability to participate in certain activities unless certain conditions are met; and

WHEREAS, during early stages of the COVID-19 pandemic, health professionals and epidemiological modeling experts indicated that the spread of COVID-19, if left unchecked, threatened to overwhelm portions of Washington's public and private health-care system; and

WHEREAS, although COVID-19 continues to be an ongoing and present threat in Washington State, the measures we have taken together as Washingtonians over the past 24 months, including the willingness of many eligible Washingtonians to take advantage of the remarkable, life-saving vaccines being administered throughout the state, have made a difference, and have altered the course of the pandemic in fundamental ways; and

WHEREAS, as of March 7, 2022, 81% of people five years and older have initiated COVID-19 vaccination and 73.4% are fully vaccinated, and more than 58% of people eligible for a COVID-19 booster have received one; and

WHEREAS, according to the CDC, with current high levels of vaccination and high levels of population immunity from both vaccination and infections, the risk of severe disease, hospitalization, and death from COVID-19 is greatly reduced for most people; and

WHEREAS, the CDC modified its COVID-19 community level metrics to incorporate measures of the impact of COVID-19 in terms of hospitalizations and healthcare system strain, in addition to accounting for transmission in the community; and

WHEREAS, using the CDC's metrics and according to statewide data, as of March 9, Washington would be at the "medium" level with a 7-day case rate of 92 cases per 100,000 people, a hospital admission rate of 6.7 per 100,000 and 12% of staffed beds occupied by people who have COVID-19; and

WHEREAS, modeling from DOH and other organizations shows expected further declines in case rates and hospital admissions; and

WHEREAS, the CDC modified its guidance which, in general, provides that the general public need not wear masks indoors in public in communities at a medium or low level; and

WHEREAS, the CDC continues to recommend wearing masks in certain settings occupied by people at greater risk for adverse consequences from COVID-19, including health care settings, long-term care settings, and correctional facilities; and

WHEREAS, on August 20, 2021, I issued Proclamation 20.25.15 amending Proclamation 20-25, et. seq., by reinstating prohibitions against use of indoor spaces without the use of a face covering; and

WHEREAS, on September 3, 2021, I issued Proclamation 20-25.16 amending Proclamation 20-25, et. seq., to clarify that local government agencies, officials, authorities and landlords are prohibited from preventing or prohibiting any person or business or other entity in their jurisdictions and tenants in their properties, respectively, from imposing face covering requirements on or requiring proof of vaccination from any worker, customer, or other person or taking or threatening to take any adverse action of any kind against any person or business or other entity or tenant for imposing face covering requirements on or requiring proof of vaccination from any worker, customer, or other person; and

WHEREAS, on September 13, 2021, I issued Proclamation 20-25.17 amending Proclamation 20-25, et. seq., to adopt and align the Proclamation with the Secretary of Health's order that was amended to also require face coverings outdoors while at a large gathering of 500 or more persons, regardless of a person's vaccination status; and

WHEREAS, the data now supports the conclusion that the surge of disease driven by the highly infectious Omicron variant is subsiding significantly in much of the state and the corresponding extraordinary stress on our hospitals due to COVID-19 hospitalizations is likewise improving; and

WHEREAS, over the past 24 months, health experts and epidemiological modeling experts, including those at the Department of Health, the United States Centers for Disease Control and

Prevention (CDC), and our state universities, have gained critical knowledge regarding the spread of COVID-19, including a better understanding of the risks associated with certain activities and the measures that can be taken to reduce those risks; and

WHEREAS, given the reduction in COVID-19 cases and hospitalizations, the requirement that face coverings be worn at outdoor events and gatherings attended by 500 or more people was rescinded as of February 18, 2022, and, further, the requirement that proof of vaccination or proof of a negative as a condition of attending a large indoor or outdoor event was rescinded on March 1, 2022; and

WHEREAS, given the continued reduction in COVID-19 cases and hospitalizations in February and early March of 2022, it is now appropriate to also rescind the requirement that face coverings be worn in most places; and

WHEREAS, notwithstanding the recent and hopeful decrease in cases and hospitalizations, the worldwide COVID-19 pandemic and its persistence in Washington State continue to threaten the life and health of our people as well as the economy of Washington State, and remain a public disaster affecting life, health, property, or the public peace; and

WHEREAS, due to the continuing COVID-19 threat, some people who are immunocompromised or medically vulnerable, or who remain concerned for their own health or the health of their family or community, have the right to continue to wear a face covering and take other preventative measures; and

WHEREAS, the Washington State Department of Health continues to maintain a Public Health Incident Management Team in coordination with the State Emergency Operations Center and other supporting state agencies to manage the public health aspects of the incident; and

WHEREAS, the Washington State Military Department Emergency Management Division, through the State Emergency Operations Center, continues coordinating resources across state government to support the Department of Health and local health officials in alleviating the impacts to people, property, and infrastructure, and continues coordinating with the state Department of Health in assessing the impacts and long-term effects of the incident on Washington State and its people; and

NOW, THEREFORE, I, Jay Inslee, Governor of the state of Washington, as a result of the above noted situation, and under Chapters 38.08, 38.52, and 43.06 RCW, do hereby proclaim and order that a State of Emergency continues to exist in all counties of Washington State, that Proclamation 20-05, as amended, remains in effect, and that, to help preserve and maintain life, health, property or the public peace pursuant to RCW 43.06.220(1)(h), Proclamation 20-25, et seq., remains in full force and effect*,* except as specifically amended by this Proclamation 20-25.18, as set out below.

FURTHERMORE, I hereby amend the provisions in 20-25, et seq., as they relate to face coverings to prohibit any individual from failing to wear a face covering as required by the Secretary of Health's face covering order and any subsequent amendments. I further prohibit any governmental, commercial, or nonprofit entity or private party that continues to be subject to the Secretary of Health's face covering order from allowing any individual to enter or remain in any indoor space under their control unless the individual is in compliance with the Secretary of Health's face covering order and any subsequent amendments.

ADDITIONALLY, in furtherance of these prohibitions, and for general awareness:

1. The face covering requirements in prior versions of Proclamation 20-25 are hereby rescinded and replaced with the requirements imposed in and pursuant to this version of Proclamation 20-25. The Secretary of Health's face covering order and any subsequent amendments are incorporated by reference.

2. Employers must comply with all conditions for operation required by the Washington State Department of Labor & Industries, including interpretive guidance, regulations and rules and Department of Labor & Industries-administered statutes.

3. Employers must notify their local health jurisdiction within 24 hours if they suspect COVID-19 is spreading in their workplace, or if they are aware of two or more employees who develop confirmed or suspected COVID-19 within a 14-day period.

4. Everyone is required to cooperate with public health authorities in the investigation of cases, suspected cases, outbreaks, and suspected outbreaks of COVID-19 and with the implementation of infection control measures pursuant to State Board of Health rule in WAC 246-101-425.

ADDITIONALLY, in support and clarification of this proclamation:

1. In general: Pursuant to the Secretary of Health's face covering order, face coverings are not required in most places. Face coverings continue to be required in certain places, including health care settings, long-term care settings, and correctional and jail facilities. Face covering requirements are found in the Secretary of Health's face covering order, and any subsequent amendments, as incorporated herein by reference.

2. Additional local restrictions may apply: Nothing in this proclamation or in the Secretary of Health's face covering order prevents any other individual or entity from imposing more restrictive face covering or additional restrictions or requirements in businesses or other locations within the scope of their legal authority. In addition, local government agencies, officials, and authorities and landlords are prohibited from preventing or prohibiting any person or business or other entity in their jurisdictions

and tenants in their properties, respectively, from imposing face covering requirements on or requiring proof of vaccination from any worker, customer, or other person and are further prohibited from taking or threatening to take any adverse action of any kind against any person or business or other entity or tenant for imposing face covering requirements on or requiring proof of vaccination from any worker, customer, or other person. Adverse actions prohibited by this section include, but are not limited to, denying, suspending, withholding, or terminating a contract, patronage, funding, or benefits, declining to rent or lease property, increasing rental rates, and eviction.

3. Customers: For purposes of this Proclamation, the term "customers" has its ordinary meaning and it also means visitors, patients, and any other person who lawfully enters a public or private space.

    a. Entities and individuals who have authority over health care settings, long-term care facilities, and correctional and jail facilities are prohibited from allowing customers to enter or remain in any indoor space under their control unless the customer is wearing a face covering if required by the Secretary of Health's face covering order.
    b. Entities and individuals are prohibited from prohibiting customers from wearing a face covering in any indoor or outdoor public or private space under their control, even if the customer is not required to do so, except that customers may be required to remove their face coverings briefly for identification purposes or in order to comply with state or federal law.

4. Employees: For worksites that continue to be covered by the Secretary of Health's face covering order, all employees are required to comply with the Secretary of Health's face covering order at the employee's worksite. Unless additional restrictions are imposed by the employer or a state or local authority, or face coverings are legally required at the specific worksite regardless of vaccination status, an employee may work outdoors without wearing a face covering, and a fully vaccinated employee may work indoors without wearing a face covering at the employer's worksite in areas not generally accessible to the public when only employees are present as permitted by the Secretary of Health's face covering order, but only after the employee has either provided (a) proof of vaccination to the employer; or (b) a signed document attesting to the employee's fully vaccinated status, *except as otherwise prohibited in Proclamation 21-14, et seq. (Vaccination Requirement)*. The option, if applicable, to provide a signed self-attestation may be done in hard copy or electronically.

5. Employers: Employers are required to provide a safe and healthy workplace and must assess hazards in their workplace and take appropriate steps to protect workers. COVID-19 remains a recognized hazard that continues to pose a significant risk to the health and life of employees. Notwithstanding the relaxation of face covering requirements in most places, those employers with control over worksites covered by

the Secretary of Health's face covering order must continue to require that employees wear a face covering in accordance with the Secretary of Health's face covering order. To that end, those employers:

a. Must choose a method of proof of vaccination, documented proof of vaccination or self-attestation (*except as otherwise prohibited in Proclamation 21-14, et seq. (Vaccination Requirement*)), and require such proof from every employee before those employees are permitted to work without wearing a face covering at the employer's worksite in areas not generally accessible to the public when only employees are present as permitted by the Secretary of Health's face covering order referenced above;

b. Notwithstanding (a) above, may require that employees wear a face covering while at the worksite in all areas regardless of vaccination status; and

c. May require vaccination as a condition of employment, except as prohibited by state or federal law.

ADDITIONALLY, in addition to guidance issued by the Department of Health and the Department of Labor & Industries, additional guidance for businesses, employees, and customers may be found here and is incorporated by reference, and such guidance may be updated periodically and all such updates are also incorporated by reference.

I again direct that the plans and procedures of the *Washington State Comprehensive Emergency Management Plan* be implemented throughout state government. State agencies and departments are directed to continue utilizing state resources and doing everything reasonably possible to support implementation of the *Washington State Comprehensive Emergency Management Plan* and to assist affected political subdivisions in an effort to respond to and recover from the COVID-19 pandemic.

I continue to order into active state service the organized militia of Washington State to include the National Guard and the State Guard, or such part thereof as may be necessary in the opinion of The Adjutant General to address the circumstances described above, to perform such duties as directed by competent authority of the Washington State Military Department in addressing the outbreak.

Additionally, I continue to direct the Department of Health, the Washington State Military Department Emergency Management Division, and other agencies to identify and provide appropriate personnel for conducting necessary and ongoing incident related assessments.

Violators of this order may be subject to criminal penalties pursuant to RCW 43.06.220(5). Further, if people fail to comply, I may be forced to reinstate additional prohibitions established in earlier proclamations.

This order is effective on March 12, 2022. Unless extended or amended, or upon termination of this amendatory proclamation, the provisions of Proclamation 20-25, et seq., will continue to be in effect until the state of emergency, issued on February 29, 2020, pursuant to Proclamation 20-05, is rescinded.

Signed and sealed with the official seal of the state of Washington on this 11th day of March, A.D., Two Thousand and Twenty-Two at Olympia, Washington.

By:

/s/
Jay Inslee, Governor

BY THE GOVERNOR:

/s/
Secretary of State